

INSTRUMENT SETTING OUT TERMS OF EASEMENT INTENDED TO BE CREATED
PURSUANT TO SECTION 88B OF THE CONVEYANCING ACT, 1919

Lengths are in metres

Plan:

DP 639390

(Sheet 3 of 5 sheets)

Plan showing right of way over
Portions 64, 122, 156 and 157
Parish of Umburra County of
Cowlsey

(1v) Lot 2 in Deposited Plan No.
587571 being the whole of the
land comprised in Certificate
of Title Volume 13315 Folio 215

(1) Portions 227, 68, 69, 107, 245,
181, 29, 99, 155, 217, 226,
228, 183, 184, 100 and 152
Parish of Umburra County of
Cowlsey being part of the land
comprised in Certificate of
Title Volume 13315 Folio 219.

PART 2.

1. Terms of right of way referred to in above-mentioned plan.

Right of carriage way provided that such right shall be subject
to the conditions:-

- (1) that the registered proprietor of the fee simple estate in the
land burdened by the easement shall maintain and keep in proper
repair a gravel road within the site of the right of way within
the land so burdened to a standard sufficient for the passage at
all times of two wheel drive motor cars,
- (11) that the registered proprietor for the time being of the fee
simple estate in the parcels of land referred to in Part A of
the Schedule hereinafter set out benefited by the easement or a
part of the easement shall pay or bear respectively the
proportion of the total cost of the maintenance and repair of
the said gravel road over the full length of the easement as
provided opposite such parcels in Part B of the said Schedule,
- (111) that it shall be a condition of the continued exercise of and
entitlement to the easement or any part of the easement that the
registered proprietor for the time being of the fee simple
estate in any land benefited by the easement shall comply with
the aforesaid conditions (1) and (11), and
- (1v) that if there is any dispute relating to the need to carry out
work in respect of the said road, the value or cost of that
work, or the amount of the contribution of any registered
proprietor to that cost, that dispute shall be determined by a
single arbitrator (being a barrister of the New South Wales Bar

REGISTERED 17.12.1986

INSTRUMENT SETTING OUT TERMS OF EASEMENT INTENDED TO BE CREATED
PURSUANT TO SECTION 88B OF THE CONVEYANCING ACT, 1919

Lengths are in metres

Plan: DP 639390

PART 1.

Plan showing right of way
over Portions 64, 122, 156 and
157 Parish of Umburra County of
Cowlsey.

1. Identity of easement
referred to in above-
mentioned plan:

Schedule of land affected

Right of way 20 wide.

Land burdened.

Portion 122 Parish of Umburra
County of Cowlsey being part of
the land comprised in Certificate
of Title Volume 13315
Folio 219

Land benefited.

- (1) Portion 157 Parish of Umburra
County of Cowlsey being the
whole of the land comprised in
Certificate of Title Volume
13315 Folio 217.
- (11) Portions 62, 63, 64, 91, 108,
12, 123, 130, 216, 227, 68, 69,
126, 107, 245, 151, 29, 99,
183, 217, 228, 228, 153, 154,
100 and 152 Parish of Umburra
County of Cowlsey being part of
the land comprised in
Certificate of Title Volume
13315 Folio 219.
- (111) Lot 5 in Deposited Plan No.
618257 being the whole of the
land comprised in Certificate
of Title Volume 14500 Folio
202.

REGISTERED 17.12.1986

This negative is a photograph made as a permanent
record of a document in the custody of the
Registrar General this day.

17th December, 1986

FRAMED

INSTRUMENT SETTING OUT TERMS OF EASEMENT INTENDED TO BE CREATED
PURSUANT TO SECTION 88B OF THE CONVEYANCING ACT, 1919

Lengths are in metres

(Sheet 2 of 5 sheets)

Plan: Plan showing right of way over Portions 64, 122, 156 and 157 Parish of Umburra County of Cowley.

(1v) Lot 2 in Deposited Plan No. 587571 being the whole of the land comprised in Certificate of Title Volume 13315 Folio 215

Portion 64 Parish of Umburra County of Cowley being part of the land comprised in Certificate of Title Volume 13315 Folio 219

(1) Portion 157 Parish of Umburra County of Cowley being the whole of the land comprised in Certificate of Title Volume 13315 Folio 217.

(11) Portions 62, 63, 122, 91, 108, 13, 123, 130, 215, 227, 68, 69, 186, 107, 243, 151, 29, 93, 185, 217, 226, 228, 153, 154, 100 and 152 Parish of Umburra County of Cowley being part of the land comprised in Certificate of Title Volume 13315 Folio 219.

(111) Lot 5 in Deposited Plan No. 618257 being the whole of the land comprised in Certificate of Title Volume 14500 Folio 202.

(1v) Lot 2 in Deposited Plan No. 587571 being the whole of the land comprised in Certificate of Title Volume 13315 Folio 215

(1) Portion 157 Parish of Umburra County of Cowley being the whole of the land comprised in Certificate of Title Volume 13315 Folio 217.

(11) Portions 13, 216, 227, 68, 69, 107, 243, 151, 29, 93, 185, 217, 226, 228, 153, 154, 100 and 152 Parish of Umburra County of Cowley being part of the land comprised in Certificate of Title Volume 13315 Folio 219.

(111) Lot 5 in Deposited Plan No. 618257 being the whole of the land comprised in Certificate of Title Volume 14500 Folio 202.

INSTRUMENT SETTING OUT TERMS OF EASEMENT INTENDED TO BE CREATED
PURSUANT TO SECTION 88B OF THE CONVEYANCING ACT, 1919

Lengths are in metres

(Sheet 4 of 5 sheets)

Plan: Plan showing right of way over Portions 64, 122, 156 and 157 Parish of Umburra County of Cowley.

of at least five years standing) appointed under the Commercial Arbitration Act 1984 or such Act as shall replace or consolidate it, whose determination shall be final.

The Schedule heretofore referred to

Part A Land benefited

Part B Proportion of total cost of maintenance and repair of gravel road.

(1) Portions 62, 63, 64, 91 and 108 in the Parish of Umburra County of Cowley being part of the land comprised in Certificate of Title Volume 13315 Folio 219.

(11) Portions 122, 123, 130 and 156 in the Parish of Umburra County of Cowley being part of the land comprised in Certificate of Title Volume 13315 Folio 219.

(111) Portions 13 and 216 in the Parish of Umburra County of Cowley being part of the land comprised in Certificate of Title Volume 13315 Folio 219 and Lot 5 in Deposited Plan No. 618257 being the whole of the land comprised in Certificate of Title Volume 14500 Folio 202.

(1v) Portion 157 in the Parish of Umburra County of Cowley being the whole of the land comprised in Certificate of Title Volume 13315 Folio 217

(v) Portions 227, 60, 69, 107, 245, 151, 29, 93, 185, 217, 226, 228, 153, 154, 100 and 152 in the Parish of Umburra County of Cowley being part of the land comprised in Certificate of Title Volume 13315 Folio 219 and Lot 2 in Deposited Plan No. 587571 being the whole of the land comprised in Certificate of Title Volume 13315 Folio 215

INSTRUMENT SETTING OUT TERMS OF EASEMENT INTENDED TO BE CREATED
PURSUANT TO SECTION 88B OF THE CONVEYANCING ACT, 1919

Lengths are in metres

(Sheet 5 of 5 sheets)

Plan: Plan showing right of way over Portions 64, 122, 156 and 157 Parish of Umburra County of Cowley.

SIGNED in my presence by Ian Gillespie-Jones and Marion Joyce, Gillespie-Jones who are personally known to me.

Signature of Witness

Name of Witness (Block letters)

Qualification of witness

THE COMMON SEAL OF THE HORSESHOE PTY LIMITED was heretofore affixed by authority of the Board of Directors in the presence of:

Signed at Sydney the 19th day of November 1986 for Commonwealth Savings Bank of Australia by its Attorney who is for the time being SHIRLEY HANNAHER NSW BRIDGES, Deputy of Attorney for the Registrar General, in the office of the Registrar General.

Signed at Sydney the 19th day of November 1986 for Commonwealth Savings Bank of Australia by its Attorney who is for the time being SHIRLEY HANNAHER NSW BRIDGES, Deputy of Attorney for the Registrar General, in the office of the Registrar General.

Signed at Sydney the 19th day of November 1986 for Commonwealth Savings Bank of Australia by its Attorney who is for the time being SHIRLEY HANNAHER NSW BRIDGES, Deputy of Attorney for the Registrar General, in the office of the Registrar General.

Signed at Sydney the 19th day of November 1986 for Commonwealth Savings Bank of Australia by its Attorney who is for the time being SHIRLEY HANNAHER NSW BRIDGES, Deputy of Attorney for the Registrar General, in the office of the Registrar General.

Signed at Sydney the 19th day of November 1986 for Commonwealth Savings Bank of Australia by its Attorney who is for the time being SHIRLEY HANNAHER NSW BRIDGES, Deputy of Attorney for the Registrar General, in the office of the Registrar General.

Signed at Sydney the 19th day of November 1986 for Commonwealth Savings Bank of Australia by its Attorney who is for the time being SHIRLEY HANNAHER NSW BRIDGES, Deputy of Attorney for the Registrar General, in the office of the Registrar General.

Signed at Sydney the 19th day of November 1986 for Commonwealth Savings Bank of Australia by its Attorney who is for the time being SHIRLEY HANNAHER NSW BRIDGES, Deputy of Attorney for the Registrar General, in the office of the Registrar General.

Signed at Sydney the 19th day of November 1986 for Commonwealth Savings Bank of Australia by its Attorney who is for the time being SHIRLEY HANNAHER NSW BRIDGES, Deputy of Attorney for the Registrar General, in the office of the Registrar General.

Signed at Sydney the 19th day of November 1986 for Commonwealth Savings Bank of Australia by its Attorney who is for the time being SHIRLEY HANNAHER NSW BRIDGES, Deputy of Attorney for the Registrar General, in the office of the Registrar General.

Signed at Sydney the 19th day of November 1986 for Commonwealth Savings Bank of Australia by its Attorney who is for the time being SHIRLEY HANNAHER NSW BRIDGES, Deputy of Attorney for the Registrar General, in the office of the Registrar General.

FRAME 2

This negative is a photograph made as a permanent record of a document in the custody of the Registrar General this day.

17th December, 1986

REGISTERED 17.12.1986